Mishpatim 5783

Rabbi Oelbaum shared an insightful observation in פרשת יתרו. There's a מחלוקת about whether יתרו's arrival to join כלל ישראל occurred before מתן תורה or afterward. He posed an interesting question: According to the opinion that יתרו came after מתן תורה, why does the תורה place this event before מתן תורה?

A possible answer is connected to the sequence of the פרשיות known as שובבים, which concludes with משפטים. These פרשיות cover some of the most dramatic events in history: שִׁעבּוּד מצרים, יציאת מצרים, and קבלת התורה. One might think that מתן תורה represents the ultimate climax of this narrative. However, Rabbi Oelbaum explained that the true climax is actually פרשת משפטים.

Why? Because מתן תורה was necessary as a foundation, but משפטים represents the real beginning of practical תורה. Until this point, we've primarily been reading stories - important ones, certainly, as מעשה אבות סימן לבנים. But משפטים marks the transition to הלכות: learning about עבד עברי, שומרים, נזיקין, ממונות, and the many critical laws that guide the daily life of a Jew and help distinguish him as a member of כלל ישראל.

However, Rabbi Oelbaum emphasized that משפטים can only follow הר סיני, and הר סיני can only be reached through פרשת יתרו. Why? Because יתרו's arrival and the way משה רבנו treated him with the utmost כבוד teach us a crucial lesson: the necessity of מידות. Before we can receive תורה, we must first cultivate proper מידות. Without מידות, מתן תורה is impossible.

An interesting story from R' Chaim Kanievsky illustrates this idea. (*Rav Chaim Kanievsky on Chumash*. Permission granted by ArtScroll / Mesorah Publications) It happened that two children were becoming בר מצוה on the same שבת, which happened to be פרשת יתרו. The father of each of these boys made sure to inform the גבאי of their shul (the same shul) that his son intended to lein the פרשה on the שבת of his בר מצוה, as is customary in many communities.

Unfortunately, the גבאי was only human, and when the second father approached him, he forgot that the first father had already reserved that שבת. When the בר מצוה was only a few short weeks away, the גבאי realized his error. What could he do? Both boys had put in months of preparation, learning the words and trup of their פרשה and were eager to perform, but they couldn't both lein. With no choice, the גבאי called both בר מצוה boys and their fathers to a meeting.

He revealed his mistake and apologized profusely. "However", he said, "Now I am stuck with a dilemma. My apologies cannot create the possibility for both of you to lein the same פרשה on the same שבת. I cannot decide between you, so please come up with a solution on your own."

The first boy immediately stood up and said, "I am prepared to allow my friend to lein פרשת יתרו. It is true, my father reserved this שבת first. I am willing to forego my rights and prepare פרשת משפטים instead". Pretty impressive. Despite the work he had already invested in preparing יתרו, he allowed his friend's needs to take precedence.

A few years later, the first boy's mother became ill and had to be hospitalized. The doctors tried to treat her, but they could not, despite all of their efforts, diagnose the root of her illness. Her condition worsened and worsened.

Her children took turns staying with her so she would never be alone in the hospital. And the young hero of our story also took his turn, sitting at her bedside, repeating the holy words of תהילים, beseeching

Hashem to heal his mother. It so happened that R' Elyashiv was also admitted to the hospital for treatment during that time. His disciples arranged to have a world-famous specialist flown in from the United States to supervise his care. Since he would be remaining in the hospital over שבת, minyanim were arranged. It was פרשת משפטים. The boy offered to lein as he remembered the פרשה from his בר מצוה preparations and would be staying with his mother that שבת.

After davening, the רב approached the boy to thank him for his leining. In the course of the conversation, he realized that the boy's mother was suffering from a disease similar to his own. So he asked that the specialist who had been brought in for his care take the time to examine her and see if he could help. Indeed, Hashem granted this physician the ability to discern that which had been hidden from the other doctors. He was able to prescribe treatments that soon restored her, baruch Hashem, to full health and allowed her to return home to her grateful family. All because a young boy was ready to forgo his due so that his friend would not suffer.

It's a fabulous story. It's pretty well known. I'm happy to relate it to those of you who have not heard before, and those who have heard it before, it's a great idea to hear it one more time.